

The Health Record Rights Index: Who Holds the Record in 198 Countries?

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Abstract

We scored 198 countries and territories (all 193 UN member states, plus Greenland, Kosovo, Palestine, Taiwan and Vatican City) from 0 to 100 on one question: does a person get to see, control and share their own health record? Eight weighted categories cover access to the full record, control and consent, privacy and security, protection from commercial use, a connected care journey, clinician access at the point of care, research consent, and clinical AI governance. Research agents built on Anthropic's Claude models did the research and scoring against a written rubric, and the authors ruled on every finding and every change. The rubric requires an agent to open every source it cites; a later check of every cited link found 7156 cited links checked: 6835 opened, 0 dead, 111 blocked by bot protection and 207 unreachable or unresolved. Every score cites the public pages it rests on: 5147 cited sources (978 undated). Finland (71), Denmark (70), Estonia (68), Hungary (68) and Sweden (67) have the highest scores; allowing for scoring error, any of them could rank first. The median is 39, and scores track national income closely: Spearman +0.72 (95% interval +0.64 to +0.79, n 188). By band, with the range each count takes when weights and scores are varied: 9 Strong (7 to 14 across draws), 66 Mixed (58 to 72), 111 Weak (101 to 115) and 12 Poor (10 to 19). No country reaches the top band in any draw; 12 countries are Poor as published (10 to 19 across draws). A blind re-scoring of 58 sampled cells by a separate session of the same model family, run before the 2 October re-research, agreed with the scores at that time at an intraclass correlation of 0.82; no human rater has scored the index. A single cell can move by about 17 points. Once a country's scoring error and the weights are both allowed for, a country's likely rank typically spans 43 places. We also classed where control over the record sits by default, which we call who holds the keys: 51 Shared, 81 Institutional and 66 State; 0 Individual. No country gives the person the default say over who sees the record; our definition of that class requires that nothing flow into a state or provider system by default, which no national system does. An audit of our own scores found that the same legal situation was sometimes scored differently in different regions. We tightened the

rubric, rescored, and report every change. A separate context layer, which changes no score, asks whether strained public systems push care to private providers whose records do not reach the public record. Alongside the scores we collected 446 published accounts of real problems with health records. They illustrate the scores and do not change them. The paper and data are released under CC BY 4.0 and the code under the MIT licence.

Keywords: health records, patient access, consent, health data governance, interoperability, European Health Data Space, HIPAA, GDPR, clinical AI governance, composite index

1. Why this question

A health record follows a person through every part of care: the family doctor, the hospital, the lab, the pharmacy, the insurer, public health and research. Each party in that chain sees its own part. Clinicians see the records their own service holds. Insurers see claims. Governments see registries. In our view the person whose record it is often sees least: a portal, a summary, or a photocopy that took weeks to arrive. The index measures how far that is true, country by country.

Clinical AI raises the stakes. Systems that read records to suggest diagnoses, summarise notes or triage patients are only as good as the record they read. The person whose record it is usually has the least say in how it is used, and the least ability to find out what it contains.

We wanted one comparable answer, country by country, to a plain question: does a person get to see, control and share their own health record? Most existing indices measure the digital maturity of health systems, as reported by governments. The Euro Health Consumer Index and an earlier patient empowerment report scored record access as one item among many (Section 6). We set out to measure the patient's side as the object of the index: the right in law and, where published evidence allows, whether it works in practice. We did not measure practice directly: no record requests, patient surveys or tests.

2. What we measured

2.1 Eight categories

Each country receives a score from 0 to 100 in eight categories. The overall score is their weighted average. The weights are the authors' judgment. Access and control carry the most weight because they are the core of the question.

Category	Weight	Min	Q1	Median	Q3	Max
Patient access to the full record	20%	15	35	43	60	80
Patient control and consent	20%	20	28	30	47	74
Privacy and security	15%	15	35	45	52	65
Connected care journey	15%	18	28	38	58	82
Protection from commercial use	10%	15	35	45	52	70

Category	Weight	Min	Q1	Median	Q3	Max
Clinician access at the point of care	10%	15	23	34	54	78
Research and trial consent	5%	30	45	46	49	70
Clinical AI governance	5%	15	22	30	50	66

Table 1. The eight categories, their weights, and the distribution of scores across all countries (minimum, quartiles, median, maximum).

1. **Patient access to the full record.** The legal right to see and copy the whole record (notes, labs, imaging reports, history), and the practical reality: a national portal or not, summary or full record, how many years, cost and time limits, machine-readable export.
2. **Patient control and consent.** Whether the person decides who sees and uses their data, with granular and revocable choices; whether they can see who accessed it; whether the default is individual or institutional control.
3. **Privacy and security.** Health data's legal status, breach notification, penalties, regulator independence and enforcement, major breaches, state access exceptions.
4. **Protection from commercial use.** Limits on selling health data or using it for marketing, data brokers, consumer health apps outside health law, sale of de-identified data. A high score means strong protection.
5. **Connected care journey.** Infrastructure that links the record across primary care, hospitals, labs, pharmacy, claims, public health and research, and how much it is used.
6. **Clinician access at the point of care.** Whether the treating clinician can see the patient's complete record across providers when needed, under consent and emergency rules.
7. **Research and trial consent.** Ethical, consent-based secondary use; transparency; trial consent law. A high score means the person's choice is respected and research is still possible.
8. **Clinical AI governance.** Rules for AI used in care: device regulation, change control, transparency, data provenance, human oversight, rules for generative AI.

2.2 Bands

Scores map to five bands, anchored in the rubric: **Leading** (85 to 100): the right exists in law and works in practice at national scale, with controls the patient can see. **Strong** (65 to 84): the right exists and mostly works, with notable gaps. **Mixed** (45 to 64): partial rights or partial infrastructure. **Weak** (25 to 44): rights mostly on paper, or a fragmented record. **Poor** (0 to 24): no meaningful right or infrastructure, or active misuse.

2.3 Who holds the keys

Separately from the score, each country is classed by where control sits by default. The classes were given written anchors on 2 October 2026 (docs/RUBRIC_V1_1_ANCHORS.md) and applied to every country in order:

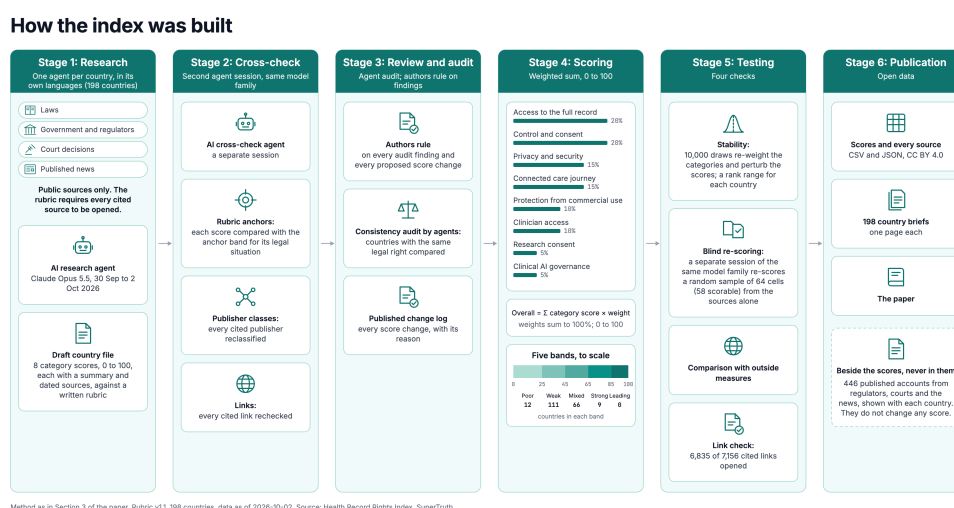
- **Individual:** the record is held or directed by the person, nothing flows into a state or provider system by default, and every disclosure needs the person's prior, revocable consent, with a log the person can read.
- **Shared:** the system shares by default or by law, but the person has at least one working choice over who sees the record in care (opt-in, opt-out, or blocking named

providers or items), in force for the general population. An access log alone is visibility, not control, and a research opt-out alone does not count.

- **State:** no such working choice, and a live government-run national record or exchange used for care holds the data by default.
- **Institutional:** no such working choice, and records are held provider by provider with no live national record of that kind.

Applying the anchors changed Cyprus (Shared to State), Greece (Shared to State) and Indonesia (Shared to State). The class and the control score measure different things and can disagree: a State country with a strong log the patient can see can outscore a Shared country with a weak choice.

3. How we scored



How the index was built.

Figure 1. How the index was built: research, cross-check, review and audit, scoring, testing and publication. Every count in the figure is read from the repository (scripts/fig_method.js).

Countries. 198 countries and territories across 6 regions: all 193 UN member states, plus Greenland, Kosovo, Palestine, Taiwan and Vatican City. The first 43 were chosen to cover every inhabited region and the largest health systems; they were researched in the index's first version and re-researched in full on 2 October 2026. 21 countries were added on 1 October 2026, mostly to complete the European Union, and Albania on 2 October. On 2 October 48 more were added, then 81, then Palestine and Vatican City, so that the index covers every UN member state, and last Greenland and Kosovo, which each run their own health system under their own law. Every added country went through the same three steps: research in the country's own languages with primary sources first, an adversarial cross-check of the file by a second agent session of the same model family, and a search for published accounts (Section 5). Names follow our country files; listing a place separately reflects a separate health system and law and implies no position on its status. Regions are our own grouping for reading the tables (Turkey, Russia, Ukraine and Albania are in Europe; Israel is in the Middle East), not a political classification.

Use of AI. We report this following the 2025 position statement of Cochrane, the Campbell Collaboration, JBI and the Collaboration for Environmental Evidence, which asks authors to name the AI system, its version and the dates used, the purpose, and how

its output was validated [22].

- *System and dates.* Research agents built on Anthropic’s Claude models (Claude Opus 5.5, run through Claude Code), used from 30 September to 2 October 2026.
- *What the agents did.* Research and scoring of every country against the written rubric; a cross-check of each country’s research by a second agent session, which reclassified every cited publisher, rechecked every link and compared each score with the anchor band for its legal situation; the consistency audit (Section 7); collection and first review of the accounts (Section 5); the outside research for the context layer (Section 9); the reading of the X sample (Section 10); the blind re-scoring below; and drafting of this paper.
- *What the authors did.* The authors directed the research, ruled on every audit finding and every proposed score change, and reviewed and revised the text. Each ruling is recorded with its evidence in docs/SCORE_CHANGES.md. We do not claim that a person read every cell and every source.
- *How the output was checked.* A link check of every cited URL (the figures in the abstract). A verifier for the accounts, tested by planting eight rule violations, all caught. A verifier for the stability analysis, tested with planted bugs (wrong rounding, swapped weights, a score off by one). A verifier of the blind re-scoring transcripts, tested with 13 planted breaches of the blind, all caught. The cross-check of each country’s research by a second agent session of the same model family, which could see the first session’s scores. A blind re-scoring of a random sample of cells, reported below. The checking agents run on the same model family as the research agents, so these checks are independent readings, not independent judges; Section 7.4 sets out what that limits.

The rubric requires that every number and law name come from a page the agent opened, and that a fact which could not be verified be marked “not verified” in the text. Each country file’s asOf is the date the file was last checked; dates run from 2026-10-01 to 2026-10-02.

Evidence. Each category cites one to four sources, most of them dated, and each source carries its publisher class (law text, government or regulator, intergovernmental body, academic, news, law firm, blog or vendor). Each country also lists its key laws, a care-journey map (each of seven stages marked connected, partial, siloed or unknown), and recent news items.

Confidence. Confidence follows a fixed rule from source counts: a country is high confidence when 7 or 8 of its categories cite a primary source (law text, government, regulator or intergovernmental body), medium with 5 or 6, and low with 4 or fewer. The publisher classes behind the count were assigned by agents, and the cross-check reclassified every cited publisher. An admission in the text that a fact was not verified caps the label at medium. The cap matches a fixed set of wordings (“not verified”, “could not confirm”, “did not verify”, “no verified” and similar), widened on 2 October 2026 after a reviewer found wordings that escaped it. 0 countries are low confidence: .

Same regime, same band. Rubric v1.1 adds sub-anchors so that the same legal situation lands in the same band wherever it is. For example, a statutory right to a copy with no national portal starts at 45 on access, gains 5 for a free right with a fixed deadline or a structured format, and loses 5 each for a fee, no deadline, a limited scope or a right not yet enforceable. In EU and EEA states the GDPR’s one-month deadline and free first copy bind by law, so that step is credited whatever the cited national page says. An EU country with only EU law on clinical AI scores 50, plus 4 for each verified national

addition. Research use without consent or opt-out starts at 40 and gains 3 for each documented safeguard, up to 50. If a key fact could not be verified, the score stays in the lower half of its band and earns nothing from that fact.

Precision. 871 of 1584 category scores (55%) are multiples of five: scores cluster there, which shows how numbers were chosen rather than how precise they are. The blind re-scoring below measures precision directly. We use competition ranking: tied countries share a rank, shown as “4=”, and ties are taken on the displayed whole number.

How far a second reading agrees. To test whether the scores depend on who does the scoring, we drew a stratified random sample of 64 of the 520 country-category cells then in the index (65 countries) (8 per category, regions in proportion to country count, fixed seed). A fresh agent session re-scored each one blind. It saw only the rubric, the anchor rules with every country-specific score removed, the country, the category and the cell’s cited sources. The analysis plan was written and hashed before any cell was scored. The rater ran on 2026-10-02 (model claude-opus-5-5) and is compared with the scores as published at the time of the run. On the 58 cells it could score, it landed on average 5.8 points (95% CI 4.3 to 7.6) from the published score, within 10 points in 88% of cells, with no overall bias (-0.4 points). The intraclass correlation (ICC(2,1), absolute agreement) was 0.82 (95% CI 0.72 to 0.89) and the weighted kappa on the five bands 0.63. Two agent readings of the same sources agree on ordering and level; this does not show that a human, a different model, or a rater gathering its own evidence would agree. Against the current published scores the same ratings give an intraclass correlation of 0.83 (95% CI 0.70 to 0.92; 25 of the 58 cells were re-researched after the run, and the rater read the earlier sources). A single category score does not replicate to the point: the limits of agreement are -17.7 to +16.9 points, and 38% of cells changed band. 6 cells could not be scored because the rater could not read their sources, and 43 of 168 (26%) of the cited URLs in the sample were unreadable to it, mostly PDFs; agreement was closer where every source was read. The rater shares a model family with the research agents, so this is agreement between two agent readings of the same evidence under the same rubric. It is not a human inter-rater study, and it does not test whether a rater who gathered its own evidence would agree. 5 cells differed by 15 points or more and were returned to the authors; the rulings so far are in docs/SCORE_CHANGES.md, and one (India, clinician access) awaits a ruling.

A second full reading of 43 countries. On 2 October 2026 the first 43 countries were researched again from scratch, which works as an unplanned test-retest of the whole pipeline, research included. Between the two readings 278 of 344 category scores in 43 countries changed. Agreement on single category scores (intraclass correlation ICC(2,1), absolute agreement [32]) was 0.86 (95% CI 0.83 to 0.89), with limits of agreement of -12.4 to +15.2 points and a band change in 80 of 344 cells. Agreement on the overall score was 0.94 (95% CI 0.90 to 0.96), Spearman 0.95; the largest move was 11 points, and 11 of 43 countries changed band. Agreement was 0.86 or higher in six categories but weak in research consent (0.54) and clinical AI (0.58), which together carry 10% of the weight. Two caveats make these figures an upper bound: the second reading could see the first reading’s scores, so it may have anchored on them, and both readings came from the same model family. The test-retest also showed that part of the scoring error is shared across a country, which the stability analysis in Section 4.2 now models.

Computation. The overall score is computed from the category scores and the published weights, in the page itself and in the build script that produced the tables in this paper. No overall score is stored or typed by hand.

4. Results

4.1 Bands first, then ranks

By band: 9 Strong (7 to 14 across draws), 66 Mixed (58 to 72), 111 Weak (101 to 115) and 12 Poor (10 to 19). The ranges come from the stability analysis in Section 4.2. No country reaches the Leading band. Finland (71), Denmark (70), Estonia (68), Hungary (68) and Sweden (67) have the highest scores; allowing for scoring error, any of them could rank first; North Korea (19) is last. The median is 39.

Table 2 gives each country's rank with the range of ranks it holds in 90% of draws. Read the range, not the single rank. Two countries whose ranges overlap should not be called different.

Rank	Rank range (90%)	Country	Region	Keys	Overall	Band	Confidence
1	1 to 6	Finland	Europe	Shared	71	Strong	high
2	1 to 8	Denmark	Europe	Shared	70	Strong	medium
3=	1 to 13	Estonia	Europe	Shared	68	Strong	medium
3=	1 to 13	Hungary	Europe	Shared	68	Strong	high
5	1 to 17	Sweden	Europe	Shared	67	Strong	high
6=	2 to 20	Australia	Oceania	Shared	66	Strong	high
6=	2 to 20	France	Europe	Shared	66	Strong	high
6=	2 to 20	Norway	Europe	Shared	66	Strong	high
9	3 to 23	Austria	Europe	Shared	65	Strong	high
10	3 to 26	Portugal	Europe	Shared	64	Mixed	high
11=	5 to 30	Belgium	Europe	Shared	63	Mixed	medium
11=	5 to 30	Germany	Europe	Shared	63	Mixed	high
11=	5 to 31	Italy	Europe	Shared	63	Mixed	high
11=	5 to 32	Taiwan	Asia	Shared	63	Mixed	high
11=	4 to 29	Turkey	Europe	Shared	63	Mixed	medium
16=	5 to 32	Iceland	Europe	Shared	62	Mixed	medium
16=	6 to 34	Israel	Middle East	Shared	62	Mixed	high
16=	7 to 34	Latvia	Europe	Shared	62	Mixed	medium
16=	6 to 34	Singapore	Asia	Shared	62	Mixed	high
16=	6 to 33	Slovenia	Europe	Shared	62	Mixed	medium
21=	7 to 35	Liechtenstein	Europe	Shared	61	Mixed	medium
21=	8 to 36	Spain	Europe	Shared	61	Mixed	high
23=	9 to 38	Croatia	Europe	Shared	60	Mixed	medium
23=	9 to 38	Lithuania	Europe	Shared	60	Mixed	medium
23=	11 to 40	Netherlands	Europe	Shared	60	Mixed	high
23=	8 to 38	South Korea	Asia	Shared	60	Mixed	high
27=	11 to 40	Bulgaria	Europe	Shared	59	Mixed	medium
27=	12 to 42	Luxembourg	Europe	Shared	59	Mixed	medium
27=	11 to 42	Malta	Europe	Shared	59	Mixed	medium
27=	12 to 42	Poland	Europe	Shared	59	Mixed	high
27=	11 to 41	United Kingdom	Europe	Shared	59	Mixed	high
27=	13 to 42	Uruguay	Americas	Shared	59	Mixed	high
33	16 to 45	Slovakia	Europe	Shared	58	Mixed	medium

Rank	Rank range (90%)	Country	Region	Keys	Overall	Band	Confidence
34=	16 to 45	Andorra	Europe	Shared	57	Mixed	medium
34=	17 to 46	Armenia	Europe	Shared	57	Mixed	medium
34=	16 to 46	Czechia	Europe	Shared	57	Mixed	medium
34=	17 to 46	Greece	Europe	State	57	Mixed	medium
38=	19 to 48	Japan	Asia	Shared	56	Mixed	high
38=	20 to 48	Romania	Europe	Shared	56	Mixed	medium
40=	24 to 51	Cyprus	Europe	State	55	Mixed	medium
40=	23 to 50	San Marino	Europe	Shared	55	Mixed	medium
40=	23 to 51	Serbia	Europe	Shared	55	Mixed	medium
40=	23 to 54	United Arab Emirates	Middle East	Shared	55	Mixed	high
44=	27 to 55	Costa Rica	Americas	State	54	Mixed	medium
44=	28 to 57	Switzerland	Europe	Shared	54	Mixed	medium
46	30 to 57	Saudi Arabia	Middle East	State	53	Mixed	medium
47=	33 to 61	Brazil	Americas	State	52	Mixed	high
47=	33 to 60	Canada	Americas	Shared	52	Mixed	high
47=	36 to 64	Thailand	Asia	Shared	52	Mixed	high
50	36 to 65	Georgia	Europe	Shared	51	Mixed	medium
51=	41 to 71	Mongolia	Asia	Shared	50	Mixed	medium
51=	40 to 72	Qatar	Middle East	Institutional	50	Mixed	medium
53=	43 to 74	Kenya	Africa	Shared	49	Mixed	medium
53=	43 to 77	Ukraine	Europe	Shared	49	Mixed	medium
55=	46 to 81	Argentina	Americas	Shared	48	Mixed	medium
55=	46 to 82	Azerbaijan	Asia	State	48	Mixed	medium
55=	45 to 80	Kazakhstan	Asia	State	48	Mixed	medium
55=	46 to 82	New Zealand	Oceania	Shared	48	Mixed	high
55=	45 to 80	United States	Americas	Institutional	48	Mixed	high
60=	47 to 85	Bahrain	Middle East	Institutional	47	Mixed	medium
60=	47 to 82	El Salvador	Americas	State	47	Mixed	medium
60=	46 to 85	Greenland	Europe	State	47	Mixed	medium
60=	48 to 84	Indonesia	Asia	State	47	Mixed	medium
60=	48 to 87	Ireland	Europe	State	47	Mixed	high
60=	47 to 84	Kyrgyzstan	Asia	State	47	Mixed	medium
60=	46 to 83	Vietnam	Asia	State	47	Mixed	high
67=	49 to 88	Belarus	Europe	State	46	Mixed	high
67=	49 to 89	Oman	Middle East	State	46	Mixed	medium
67=	50 to 89	Tonga	Oceania	State	46	Mixed	medium
67=	51 to 92	Uzbekistan	Asia	State	46	Mixed	medium
71=	52 to 95	India	Asia	Shared	45	Mixed	medium
71=	53 to 94	Kuwait	Middle East	State	45	Mixed	medium
71=	52 to 93	North Macedonia	Europe	State	45	Mixed	medium
71=	53 to 96	Peru	Americas	Institutional	45	Mixed	medium
71=	54 to 97	Russia	Europe	State	45	Mixed	medium
76=	56 to 99	Bosnia and Herzegovina	Europe	Institutional	44	Weak	medium

Rank range		Country	Region	Keys	Overall	Band	Confidence
Rank	(90%)						
76=	56 to 99	Montenegro	Europe	Institutional	44	Weak	medium
76=	55 to 98	Panama	Americas	Institutional	44	Weak	high
76=	55 to 98	Rwanda	Africa	State	44	Weak	medium
80=	60 to 109	Brunei	Asia	State	43	Weak	high
80=	59 to 106	China	Asia	State	43	Weak	high
80=	58 to 103	Colombia	Americas	State	43	Weak	medium
80=	61 to 106	Ecuador	Americas	State	43	Weak	medium
80=	59 to 106	Eswatini	Africa	Institutional	43	Weak	medium
80=	60 to 107	Malaysia	Asia	Institutional	43	Weak	medium
80=	57 to 102	Monaco	Europe	Institutional	43	Weak	medium
80=	58 to 105	Seychelles	Africa	State	43	Weak	medium
80=	57 to 102	South Africa	Africa	Institutional	43	Weak	high
89=	63 to 110	Mexico	Americas	Institutional	42	Weak	high
89=	60 to 113	Nauru	Oceania	Institutional	42	Weak	medium
91=	67 to 117	Albania	Europe	Institutional	41	Weak	medium
91=	67 to 117	Jordan	Middle East	State	41	Weak	medium
91=	70 to 119	Mauritius	Africa	State	41	Weak	high
91=	70 to 119	Moldova	Europe	Institutional	41	Weak	medium
91=	67 to 117	Tanzania	Africa	State	41	Weak	medium
91=	66 to 114	Zambia	Africa	State	41	Weak	medium
97=	71 to 123	Bhutan	Asia	State	40	Weak	medium
97=	71 to 120	Malawi	Africa	Institutional	40	Weak	high
99=	80 to 133	Bahamas	Americas	Institutional	39	Weak	high
99=	74 to 128	Botswana	Africa	Institutional	39	Weak	medium
99=	75 to 127	Chile	Americas	Institutional	39	Weak	medium
99=	77 to 130	Philippines	Asia	Institutional	39	Weak	medium
99=	80 to 134	Uganda	Africa	State	39	Weak	medium
104=	82 to 141	Bangladesh	Asia	State	38	Weak	medium
104=	84 to 140	Côte d'Ivoire	Africa	State	38	Weak	medium
104=	82 to 137	Ghana	Africa	State	38	Weak	high
104=	85 to 141	Maldives	Asia	Institutional	38	Weak	high
104=	84 to 140	Zimbabwe	Africa	State	38	Weak	medium
109=	85 to 142	Barbados	Americas	Institutional	37	Weak	high
109=	89 to 148	Benin	Africa	Institutional	37	Weak	medium
109=	85 to 143	Ethiopia	Africa	State	37	Weak	medium
109=	86 to 143	Jamaica	Americas	Institutional	37	Weak	high
109=	84 to 141	Kosovo	Europe	Institutional	37	Weak	medium
109=	87 to 143	Tunisia	Africa	Institutional	37	Weak	medium
109=	85 to 142	Vatican City	Europe	Institutional	37	Weak	medium
116=	90 to 148	Cape Verde	Africa	Institutional	36	Weak	medium
116=	89 to 149	Gabon	Africa	Institutional	36	Weak	high
116=	94 to 155	Mali	Africa	Institutional	36	Weak	medium
116=	90 to 149	Morocco	Africa	Institutional	36	Weak	medium
116=	93 to 154	The Gambia	Africa	Institutional	36	Weak	medium
121=	97 to 157	Algeria	Africa	State	35	Weak	medium
121=	97 to 158	Angola	Africa	State	35	Weak	medium
121=	98 to 159	Burkina Faso	Africa	Institutional	35	Weak	medium

Rank	Rank range (90%)	Country	Region	Keys	Overall	Band	Confidence
121=	99 to 160	Burundi	Africa	State	35	Weak	medium
121=	96 to 158	Cuba	Americas	State	35	Weak	medium
121=	97 to 157	Djibouti	Africa	State	35	Weak	medium
121=	96 to 157	Lesotho	Africa	Institutional	35	Weak	medium
121=	99 to 160	Mauritania	Africa	Institutional	35	Weak	medium
121=	97 to 158	Niger	Africa	Institutional	35	Weak	medium
121=	95 to 156	Nigeria	Africa	Institutional	35	Weak	high
121=	99 to 160	Turkmenistan	Asia	State	35	Weak	medium
132=	100 to 166	Belize	Americas	State	34	Weak	high
132=	101 to 162	Democratic Republic of the Congo	Africa	Institutional	34	Weak	high
132=	99 to 160	Dominican Republic	Americas	Institutional	34	Weak	medium
132=	102 to 162	Guinea	Africa	Institutional	34	Weak	medium
132=	102 to 163	Lebanon	Middle East	Institutional	34	Weak	medium
132=	104 to 165	Madagascar	Africa	Institutional	34	Weak	high
132=	100 to 161	Senegal	Africa	Institutional	34	Weak	high
132=	102 to 162	Somalia	Africa	Institutional	34	Weak	high
132=	105 to 166	Togo	Africa	Institutional	34	Weak	medium
132=	101 to 163	Vanuatu	Oceania	Institutional	34	Weak	medium
142=	106 to 166	Antigua and Barbuda	Americas	Institutional	33	Weak	medium
142=	111 to 170	Central African Republic	Africa	Institutional	33	Weak	medium
142=	108 to 168	Chad	Africa	Institutional	33	Weak	medium
142=	107 to 167	Egypt	Middle East	State	33	Weak	high
142=	106 to 166	Mozambique	Africa	State	33	Weak	medium
142=	108 to 169	Palau	Oceania	State	33	Weak	medium
142=	106 to 166	Paraguay	Americas	Institutional	33	Weak	medium
142=	106 to 167	Republic of the Congo	Africa	Institutional	33	Weak	high
142=	109 to 169	Suriname	Americas	Institutional	33	Weak	high
151=	113 to 172	Comoros	Africa	Institutional	32	Weak	medium
151=	113 to 173	Equatorial Guinea	Africa	State	32	Weak	medium
151=	112 to 171	Guatemala	Americas	Institutional	32	Weak	high
151=	116 to 174	Nicaragua	Americas	State	32	Weak	medium
151=	114 to 173	Saint Lucia	Americas	Institutional	32	Weak	high
151=	116 to 174	Sao Tome and Principe	Africa	Institutional	32	Weak	medium
151=	116 to 174	Sri Lanka	Asia	Institutional	32	Weak	medium
151=	113 to 171	Tajikistan	Asia	State	32	Weak	high
159=	118 to 175	Cameroon	Africa	Institutional	31	Weak	medium
159=	119 to 176	Nepal	Asia	Institutional	31	Weak	high
159=	123 to 177	Syria	Middle East	State	31	Weak	medium
162=	127 to 180	Honduras	Americas	Institutional	30	Weak	medium
162=	122 to 179	Iran	Middle East	State	30	Weak	medium
162=	127 to 180	Saint Kitts and Nevis	Americas	Institutional	30	Weak	high
162=	122 to 180	Samoa	Oceania	State	30	Weak	high
166=	134 to 184	Bolivia	Americas	Institutional	29	Weak	medium
166=	133 to 183	Fiji	Oceania	Institutional	29	Weak	medium

Rank	Rank range (90%)	Country	Region	Keys	Overall	Band	Confidence
166=	131 to 182	Guyana	Americas	State	29	Weak	high
166=	134 to 183	Kiribati	Oceania	Institutional	29	Weak	medium
166=	133 to 183	Laos	Asia	State	29	Weak	medium
166=	132 to 182	Trinidad and Tobago	Americas	Institutional	29	Weak	high
172=	142 to 187	Palestine	Middle East	State	28	Weak	medium
172=	144 to 187	Timor-Leste	Asia	State	28	Weak	medium
172=	140 to 187	Venezuela	Americas	State	28	Weak	medium
175=	149 to 189	Iraq	Middle East	State	27	Weak	medium
175=	153 to 191	Sierra Leone	Africa	Institutional	27	Weak	medium
177=	155 to 192	Grenada	Americas	Institutional	26	Weak	medium
177=	154 to 191	Liberia	Africa	Institutional	26	Weak	medium
177=	157 to 192	Namibia	Africa	Institutional	26	Weak	medium
177=	156 to 192	Pakistan	Asia	Institutional	26	Weak	medium
177=	157 to 193	Papua New Guinea	Oceania	Institutional	26	Weak	high
177=	154 to 191	Saint Vincent and the Grenadines	Americas	Institutional	26	Weak	high
183=	158 to 193	Cambodia	Asia	Institutional	25	Weak	medium
183=	159 to 194	Micronesia	Oceania	State	25	Weak	medium
183=	161 to 194	Solomon Islands	Oceania	Institutional	25	Weak	high
183=	161 to 194	South Sudan	Africa	Institutional	25	Weak	high
187=	167 to 196	Dominica	Americas	Institutional	24	Poor	high
187=	167 to 196	Haiti	Americas	Institutional	24	Poor	medium
189=	172 to 197	Libya	Africa	Institutional	23	Poor	high
189=	170 to 196	Marshall Islands	Oceania	State	23	Poor	medium
189=	169 to 196	Tuvalu	Oceania	State	23	Poor	high
189=	169 to 196	Yemen	Middle East	Institutional	23	Poor	high
193=	176 to 197	Eritrea	Africa	State	22	Poor	medium
193=	173 to 197	Myanmar	Asia	State	22	Poor	medium
193=	176 to 197	Sudan	Africa	Institutional	22	Poor	high
196	180 to 198	Guinea-Bissau	Africa	Institutional	21	Poor	high
197	183 to 198	Afghanistan	Asia	State	20	Poor	medium
198	187 to 198	North Korea	Asia	State	19	Poor	high

Table 2. Overall scores, ranks (competition ranking on the displayed score; “=” marks a tie), the 90% rank range from the stability analysis (Section 4.2), region, keys class, band and confidence. Data as of the date on the title page.

4.2 How stable the ranking is

We tested how much the ranking depends on our own choices, following the uncertainty and sensitivity analysis in the OECD and European Commission Joint Research Centre Handbook on Constructing Composite Indicators [21]. We redrew the eight weights 10,000 times around the published ones, in three ways (a Dirichlet draw, and each weight moved by up to 25% or up to 50% and then rescaled). We gave every category score a random error, first uniform up to five points, then calibrated to measured disagreement: a normal error with standard deviation 6.24 points from the blind re-scoring’s limits of

agreement, and a model with a standard deviation of 5 points per category plus 2 points shared across a country, the split the test-retest suggested. The main model, from which Table 2's ranges come, combines that shared error with varied weights. Separately, we rebuilt the index with equal weights, with a geometric mean, and eight times with one category left out.

Finland is first in every rebuilt index. Under the main model, the countries whose 90% rank range includes first place, with the share of draws in which each is first, are Finland (53.5%), Denmark (27.1%), Estonia (11.8%), Hungary (10.7%) and Sweden (5.0%), so no country is called first alone (our rule requires 95%). No country reaches the top band in any draw; 12 countries are Poor as published (10 to 19 across draws): the highest score seen is 83 and the lowest 8. The median country stays Mixed (39 to 41). The rebuilt rankings correlate with ours at 0.99 or above (Spearman). Under the main model half the countries have a 90% rank range of 43 places or fewer; under the cell-only calibration the median range is 37 places, and under the uniform five-point error we first used, which is a lower bound, 17. 100 of 198 countries keep their band in 95% or more of draws.

The band counts are softer than the ranking. 84 countries keep their band in fewer than 90% of draws, because they sit within two points of a band line (unrounded score in brackets): the full list, with unrounded scores, is in analysis/robustness/ROBUSTNESS.md. If a rater were generous or harsh by up to five points across a whole country, rather than category by category, Finland would stay first in 53.7% of draws and ranks would loosen further. The test-retest in Section 3 suggests that part of the error is shared across a country, which is why the main model includes a shared offset. The code, the seed (20261002) and every setting are released with the index.

4.3 No country gives the person the keys

By keys class: 51 Shared, 81 Institutional and 66 State; 0 Individual. All 9 countries in the Strong band are Shared: the person has real controls (a consent register, an opt-out, an access log, a portal) inside a system run by the state or by providers. This link partly holds by construction, since a working choice over sharing also raises the control score, which carries 20% of the weight. No country we rated is Individual. Our definition requires that nothing flow into a state or provider system by default, which no national system does; the empty class follows largely from that definition.

More individual control is not free. In a randomised trial of 2,228 new outpatients at one Dutch tertiary hospital, an opt-out procedure for the secondary use of routine health data gave higher consent rates than opt-in, with less bias by gender, socioeconomic status and country of birth [26]. That trial concerns research use, not sharing in care, and one hospital. It still shows that a stricter consent default can make the data that research and planning rely on less representative. Our rubric rewards both the person's choice and research that remains possible (Section 2.1), and it does not yet say how to weigh one against the other.

4.4 Which rights lag

Table 1 gives the spread in each category. The highest median is research and trial consent (46); the lowest is patient control and consent and clinical AI governance (30). The widest spread between the first and third quartiles is in clinician access at the point of care (31 points); the narrowest is in research and trial consent (4). A spread is not a cause, and gaps of a few points between categories are within the precision of a single score.

4.5 By region

Region	Countries	Mean overall	Range
Europe	50	56	37 to 71
Asia	31	40	19 to 63
Middle East	15	40	23 to 62
Americas	35	37	24 to 59
Africa	53	35	21 to 49
Oceania	14	34	23 to 66

Table 3. Mean overall score and range by region. Regions differ in how many countries we rated; a regional mean over few countries says little.

5. What people report

5.1 Method

Everything in this index, the scores and the accounts alike, comes from public information: laws, government and regulator pages, court decisions and published news reports. We link to every source.

Alongside the scores we collected published accounts of real problems people have had with their health records: records refused, delayed or charged for; records that were wrong; breaches; records sold or shared without consent; records lost between providers. Research agents searched on 2026-10-01 to 2026-10-02 in 94 languages, local languages first, and found accounts in 50. The window was two years: material published between 1 October 2024 and 1 October 2026, and nothing older.

The rules below were written before collection by an internal privacy review (an agent working to a written brief) and approved by the authors. No outside legal review was commissioned. They are binding on every item:

- **Allowed sources:** published decisions of regulators, data protection authorities and ombudsmen; court and tribunal judgments; official parliamentary records; journalism from an edited outlet, whether or not the patient is named; case stories published by patient organisations that state the person agreed; personal blogs only with the author's dated written consent (none were collected for this version).
- **Excluded:** every social media platform and forum; anyone under 18, or events from when they were; deceased persons unless the source is a regulator, court or parliamentary record.
- **What we publish:** our own neutral summary of no more than 40 words and a link to the original. We never name the person. We name a hospital or company only where a regulator, court or the organisation itself has stated what happened. A non-English source is marked as such, with the summary ours.
- **Separation:** stories never feed a score. A release check fails if any story's link is also a source for a score.
- **Verification:** an agent reviewer opened every item. A verifier rechecks every rule flag and every link; it checks the flags the collecting agent set, and does not read each summary for names or conditions. Its run of 2 October 2026 found 2 of 272 links not answering. We tested it by planting eight rule violations, and it caught all eight. Eight of eight is a small test: it is consistent with a true catch rate well below 100%.

These are accounts we could find and publish under these rules. They are not a sample. Counts reflect where people speak publicly, where regulators publish their decisions, and where we searched; they do not measure how common problems are.

5.2 What we found

We collected 446 accounts covering 147 countries, published 2024-10-03 to 2026-10-01. Of these, 169 rest on a regulator, court or ombudsman finding, 97 on the organisation’s own admission, and 180 on an account not yet tested. No account names the person. The tables also suppress any count below five; no cell in Tables 4 to 6 is that small.

Theme	Stories
Breach	171
Record wrong	75
Sold or shared without consent	64
Other	39
Access delayed or charged	38
Access refused	33
Lost between providers	26

Table 4. Accounts by theme.

Source type	Stories
News report	335
Regulator or ombudsman decision	94
Court or tribunal judgment	15
Parliamentary record	fewer than 5

Table 5. Accounts by source type.

Region	Stories
Europe	178
Americas	89
Asia	85
Africa	49
Middle East	26
Oceania	19

Table 6. Accounts by region. We publish counts by theme and by region as separate tables only; there is no cross-table, and the individual accounts are linked from the interactive index rather than deposited with this paper, so that a removal request can be honoured.

News reports are the largest source type. They count whether or not the patient is named, and we never name the person. Where a country shows few or no accounts, that reflects what is published and findable, not an absence of problems.

6. Related work, and how our scores compare with other indices

6.1 Related work

We found no index whose object is a person’s rights over their own health record. The nearest is the Euro Health Consumer Index, which in its 2018 edition scored 35 European countries on 46 health-system indicators, one of them “Access to own medical record” [19]. The same organisation’s 2009 report on patient empowerment scored 31 European countries on a set of patient-rights and information indicators that included whether patients can read their own medical records [20]. Both are grey literature from a private company, and in both, record access is one item in a broader health-system or empowerment score.

Other work compares and describes without scoring. Essén and colleagues compared patient-accessible record policy and services in ten countries; all ten gave patients some right of access, and they differed on login security, proxy access and how soon results appear [7]. Kharko and colleagues surveyed experts in 29 countries on online record access: 23 had it, and clinical notes were available in 12 [8]. The NORDeHEALTH group surveyed 29,334 portal users in Norway, Sweden, Finland and Estonia [9], set out five principles for record access under the European Health Data Space (right of access, proxy access, patient-entered data, rectification and access control) [10], and proposed a framework for comparing countries [11]. Those five principles map closely onto our access and control categories. For Africa, Munung and colleagues tabulated data protection laws in 37 countries, including whether health data is a special category and which data-subject rights exist [12]; Townsend and colleagues found no AI-specific law in the 12 African countries they studied [13]. Alegre and colleagues mapped electronic record and telehealth laws across Latin America [14]. Essén and colleagues compared health app policy in nine countries, the only cross-country work we found that touches our commercial category [15]. Our contribution is a scored, sourced and repeatable comparison with the patient’s rights as its object.

6.2 Comparison with other indices

Several indices measure neighbouring things. We compared country orderings using Spearman rank correlation with 95% percentile bootstrap intervals (4,000 resamples; resamples with no variation are dropped). This is a sanity check. It does not validate our scores. The other indices describe earlier years (2018 to 2024), mostly rely on government self-report, and measure digital maturity rather than patient rights. Table 7 shows 8 rows, one per external measure and matched category; all 15 computed rows are in the repository (analysis/external/external_corr.json).

External measure (data year)	Our category	n	rho	95% interval
European Commission Digital Decade eHealth indicator (2024) [1]	Access	14	+0.47	-0.16 to +0.88
OECD EHR technical and operational readiness (2021) [2]	Journey	18	+0.46	-0.05 to +0.83
OECD EHR governance for analytics (2021) [2]	Research	18	-0.42	-0.73 to +0.00

External measure (data year)	Our category	n	rho	95% interval
Bertelsmann #SmartHealthSystems (2018) [3]	Overall	16	+0.14	-0.48 to +0.67
WHO Global Digital Health Monitor, overall (2023) [4]	Overall	18	+0.39	-0.13 to +0.80
WHO Global Digital Health Monitor, exchange architecture (2023) [4]	Journey	18	+0.46	-0.10 to +0.86
WHO Global Digital Health Monitor, AI protocol (2023) [4]	AI	18	+0.69	+0.30 to +0.90
WHO Global Digital Health Monitor, privacy laws (2023) [4]	Privacy	18	+0.21	-0.24 to +0.64
Eurostat, people who accessed personal health records online (2024) [30]	Access	34	+0.58	+0.26 to +0.82
GDP per head, PPP (World Bank, 2022 to 2024) [31]	Overall	188	+0.72	+0.64 to +0.79

Table 7. Rank correlations between our categories and published indices, for the countries in both. Computed 2026-10-02 on the current scores (the paper generator refuses this table if it was computed on other data). The European Commission, OECD and Bertelsmann values were transcribed for the original 43 countries only, so their rows cover those; the WHO values were matched for every country in the index that WHO publishes. Our data cites the European Commission indicator for three countries; without them, rho is +0.45 (n 11).

Not every correlation is positive, and most are weak to moderate, which fits an index that measures the patient's side rather than system maturity. Intervals that clear zero: WHO Global Digital Health Monitor, AI protocol (2023). Two further comparisons say more than any of these. The first is national income. Our overall score correlates with GDP per head (World Bank [31], purchasing power parity, 2022 to 2024) at +0.72 (95% interval +0.64 to +0.79, n 188); income alone accounts for 51% of the variance in our scores, about 7.7 points per natural-log unit of income. Within Europe the link is weaker: +0.47 (+0.16 to +0.69, n 47). On the 18 countries with a full 2023 Monitor response, the Monitor's overall phase correlates with income at +0.60 and our overall score at +0.56; with income held constant, the Monitor and our score correlate at +0.08 (95% interval -0.41 to +0.65), so the Monitor's agreement with our index is mostly shared income. The countries furthest above the score their income predicts are Finland (+18.9), Hungary (+17.7), Estonia (+17.6), Denmark (+15.5), Malawi (+15.2) and Kenya (+14.1); furthest below are Guyana (-24.8), Dominica (-20.3), Trinidad and Tobago (-18.8), Libya (-18.3), Saint Vincent and the Grenadines (-17.7) and Saint Kitts and Nevis (-17.7). The second is practice. Eurostat's 2024 household survey [30] asks people whether they accessed their personal health records online. Across the European countries in both, that share correlates with our access score at +0.58 (95% interval +0.26 to +0.82, n 34). It is self-report and covers Europe only, so it is a convergent check, not ground truth. The gaps run both ways: Germany 5.1% against an access score of 64, measured before Germany's 2025 rollout of its national record; in Albania 48.7% of people report online access, although our file finds no national portal that shows the record (the government portal shows a person's own e-prescriptions). The largest disagreements are informative. The European Commission indicator rates Norway's and Germany's online access well above our access scores (68 and 64). The OECD readiness survey rates Germany well below our

journey score (66), but the survey predates Germany's 2025 rollout of its national electronic record; it rates Japan well above ours (48). In the WHO monitor, the figures labelled 2024 repeat the 2019 figures row for row. For many countries the 2023 overall score rests on only two legal questions, so we used only the 18 countries that answered the full 2023 survey.

7. An audit of our own scores, and limitations

7.1 What the audit found

Before publication an audit agent checked the original 43 countries against their own rubric. It found seven problems in the scores:

1. **The same legal situation was sometimes scored differently in different regions.**
Countries with a legal right to a copy of the record but no national portal were scored anywhere from 24 to 60. Ireland's access score (24, Poor) was the clearest case: its own text describes a working legal right that is used heavily.
2. **Identical EU clinical AI situations carried different scores,** from 50 to 62.
3. **Research use without individual consent or opt-out** was scored from 45 to 64.
4. **One country's privacy score rested on a large breach outside health.**
5. **One country ranked in the top ten on very few official sources.**
6. **Confidence labels did not track sourcing.**
7. **Some cells said a key fact was not verified but still carried a number** that read as if measured.

7.2 What we changed

The authors accepted the audit's suggested decision rules on 1 October 2026. They became the rubric v1.1 anchors (Section 3), and the original 43 were rescored against them. In all, 44 category scores changed in 33 countries, and 18 confidence labels changed. Of the score changes, 6 went up and 38 went down. The largest moves were Ireland access 24 to 45, Norway research 64 to 43, Estonia research 64 to 49, Sweden research 60 to 46, Austria clinical AI 62 to 50, South Korea privacy 78 to 66 and Spain clinical AI 62 to 50. Three countries changed band: Norway (Strong to Mixed), Chile (Mixed to Weak) and New Zealand (Mixed to Weak); each move is within the precision set out in Section 4.2. The largest fall was South Korea (7 places); the largest rise was 2 places (Spain, Latvia, Slovenia, Singapore, Iceland, United States and South Africa). Confidence became the fixed rule in Section 3.

On 2 October 2026 three internal reviews (methods, policy and law, and data integrity) and the blind re-scoring led to a second round: 6 category scores changed in 6 countries, 3 keys classes changed and 3 confidence labels changed. The GDPR deadline and free first copy are now credited by law in every EU and EEA access cell. The United States and Lithuania access cells, which sat above where their own regime's arithmetic put them, were brought onto it. A one-region portal now lifts an access cell within the "no enforceable right" band, never out of it. Every cell in the upper half of its band that admits an unverified fact was re-read; two moved. The keys anchors in Section 2.3 were written and applied, and the confidence cap was widened. The reviews were drafted by agents working for the authors; they are internal pre-deposit reviews, not journal peer review.

Every change, with the evidence for it, and every cell that stayed, with the reason, is listed in the repository (docs/SCORE_CHANGES.md).

7.3 Edge cases still open

The rules settle most of the audit's findings. These cases remain, and we report them rather than force them:

- **Research cells outside the no-consent band.** Some cells whose own text describes research use without consent or opt-out sit below the band (the rule caps scores and never raises them), and one sits above it.
- **One national AI law with several health duties.** Italy's clinical AI score (54) rests on one national AI law. The anchor does not yet say whether one law with several health duties counts once.
- **Gaps in the anchors.** The anchors do not yet cover a portal with no verified legal right, a research prohibition, or binding non-EU AI rules without verified change control.
- **First-copy fees.** Some EU and EEA access cells describe copy fees without saying whether the first copy is free. Their scores sit in the portal bands, where the step does not apply, so no score moves, but the text needs a fee note.
- **The rule acts on what a cell says.** The cap on unverified facts is applied by reading each cell's text. A per-cell record of the regime each cell was placed in, and of whether a key fact is unverified, would let a reader check "same regime, same band" mechanically. It is not built in this version.

7.4 Limitations

1. **Ranks are approximate.** Section 4.2 gives each country a rank range. Read bands before ranks, and ranks as a range.
2. **A single category score carries real judgement.** The blind re-scoring puts the limits of agreement for one cell at -17.7 to +16.9 points. The rater was an agent session from the same model family as the research agents. Two readings from one model family may share the same blind spots, so their agreement may be higher than agreement with a human rater or a different model would be. No human inter-rater study has been done.
3. **The average lets strength offset weakness.** A weighted arithmetic mean lets a strong score in one category make up for a weak score in another: good infrastructure can offset weak consent. A geometric mean, which penalises imbalance, ranks the countries almost identically (Spearman 0.99), so the choice does not drive the ranking here, but the index does not say that every right must be met.
4. **Two categories overlap.** The connected care journey and clinician access move closely together ($r = 0.97$ across 198 countries). Together they carry 25% of the weight, so connected infrastructure is in effect counted twice. Leaving either one out moves the ranking little (average rank shift 4.4 places without journey, 3.0 without clinician access, against 4.7 without control), so we kept both at full weight in this version.
5. **Breach evidence depends on reporting rules.** The privacy category counts major breaches. Breaches are only visible where law requires them to be reported and published, and the authors of two US breach studies judge that even the published US counts understate the true number, because breaches go unreported and small ones are excluded [27, 28]. A country with mandatory public reporting can look worse than one whose breaches stay unseen.

6. **No equity criterion.** A right can work on average and fail for groups: in the United States, Black and Hispanic adults were less likely than White adults to be offered a patient portal and, when offered, to access it [29]. The rubric scores national rights and infrastructure and has no criterion for who can use them.
7. **Sources.** The index rests on 5147 cited sources (978 undated). Some laws are cited from secondary summaries rather than official text, and a few cells cite tertiary sources such as Wikipedia. Across all 7156 citations (3534 distinct pages) in category sources, laws and news, 7156 cited links checked: 6835 opened, 0 dead, 111 blocked by bot protection and 207 unreachable or unresolved. A link that opens shows the page exists, not that it says what the summary says; apart from the blind re-scoring, no check compares each summary with its source.
8. **Sites that block agents.** Some official sites refuse automated access. Where they did, a cell can rest on secondary sources, so confidence partly reflects whether a government's website admits agents.
9. **Time.** Scores describe the date on the title page. Several systems are changing quickly, in particular in Europe ahead of the European Health Data Space [5].
10. **Coverage.** 198 countries and territories (all 193 UN member states, plus Greenland, Kosovo, Palestine, Taiwan and Vatican City); 0 are low confidence. Places with their own health systems but no seat at the United Nations, other than those named, are not rated. The countries added on 2 October 2026 were researched in one day, and many small states rest on few sources.

8. How strong is the evidence? A grade adapted from the Data Trust Index

8.1 What it is

SuperTruth's Data Trust Index (DTI) grades health data records before an AI system uses them, on eight weighted dimensions [6]. The DTI is the authors' company's own framework, and [6] is the first author's own deposit; it has not been peer reviewed. We apply its dimensions and weights to a different object: the evidence behind each score. One cell is one country and one category, with its summary, its detail and its cited sources. Each cell gets a grade from 0 to 100. A country's grade is its cells weighted by the index's category weights.

This is an adaptation. Several dimensions have no direct counterpart in published evidence:

Dimension (weight)	As adapted for evidence
Provenance (25)	How close each publisher is to the fact: law text, government or intergovernmental body highest, then academic, news, law firm, blog or vendor
Consent (20)	Open availability: whether anyone can open the source today. The furthest stretch, since published evidence has no data subject
Recency (15)	Time since publication; a law in force counts as current at any age
Quality (10)	Completeness of the evidence record, including a publication date for every source
Concordance (10)	Number of independent publishers
Validation (10)	Whether the text admits that a fact was not verified
Breadth (5)	Number of distinct kinds of evidence
Stability (5)	Whether the cell sits in an open finding of the consistency audit

Table 8. The DTI dimensions as adapted to the evidence behind a score.

Tiers follow the DTI paper: Platinum 90 and above, Gold 80 to 89, Silver 70 to 79, Bronze 55 to 69, and below that, Below Bronze. Tiers use the unrounded grade, so a grade shown as 80 can be Silver and one shown as 90 can be Gold.

Our extension. The DTI paper defines no cap. We added one: a cell with no primary source cannot be labelled above Silver, and neither can a country with fewer than 4 of its 8 categories citing a primary source. The number is never changed, only the label. The cap applied to 18 cells and 0 countries.

8.2 Results

Country grades run from 77 to 94: 60 Platinum, 134 Gold, 4 Silver (198 countries with a published grade). No country is provisional, because one of its sources is cited from a shared file host instead of the publisher. Across all 1584 cells: 722 Platinum, 728 Gold, 133 Silver, 1 Bronze.

8.3 What it is not

- **It does not grade the country.** A Gold grade means the evidence behind the scores is well sourced. It says nothing about whether the country protects patients well. A country can have strong evidence for a weak score.
- **It does not change any score.** No category score, overall score or rank is touched by it.
- **It is not the confidence label.** Confidence counts categories with a primary source; the grade also weighs whether sources open, their dates and how many publishers agree. A low-confidence country can grade Gold. Where the two disagree, read the confidence label, which is the stricter test. The grade's cap (fewer than 4 primary categories) and the confidence rule (4 or fewer is low) are not yet aligned.
- **It does not read the sources.** It checks who published a source, whether the link opens, when the source was published and whether the author admitted a gap. It does not check that the page says what the summary says.
- **The tier names are borrowed, not their meanings.** In the DTI paper, Gold means suitable for clinical decision support. That sentence describes health records and does not carry over to evidence.
- **It is generous.** On the published weights, a cell resting on one dated news article that opens and admits no gap reaches Gold. Two dimensions vary little across cells, which pushes most grades up.

9. Strain and split: context, not scored

9.1 The question

This layer asks a question in four links. A public system short of doctors and nurses for the demand produces long waits. People who can pay turn to private care. Public and private providers keep different record systems, so the person's record breaks apart. The layer measures each link in that chain from public data, country by country, and says where the data is silent. It changes no score, and the build fails if any score moves when it loads.

Outside work supports the first two links only in part. In Britain, buying private health insurance is associated with longer local NHS waiting lists [24]. In Australia, the expected wait does not raise the chance that a person buys insurance; a high chance of a long wait does, and on average waiting time has no significant effect [25]. The link from waits to private care is real in some systems and conditional in others.

9.2 Indicators and sources

Link in the chain	Indicator	Source
Too few staff	Medical doctors, and nursing and midwifery personnel, per 10,000 people	WHO Global Health Observatory, National Health Workforce Accounts [16]
Money going private	Voluntary health insurance plus household out-of-pocket payments, as a share of current health spending, same year	WHO Global Health Expenditure Database, final years only [17]
Long waits	Median days from specialist assessment to treatment, hip and knee replacement	OECD Health Statistics, waiting times [18]
A record that stops at the private door	Whether private providers write to the record the public system uses: connected, partial, split or unknown	Our country files, and outside research with a quoted source

Table 9. The four links and their sources.

Every value carries its own year, source and retrieval date. Years differ by country, from 2010 to 2025, and the expenditure data stop at 2023, the latest year the WHO database marks as final. Data were retrieved 2026-10-02. The wait measure counts the wait of patients who were treated, which understates the queue of those still waiting.

9.3 Flags

There is no composite score. Each country gets four flags, each true, false or unknown. A flag is true when doctors or nurses fall below the lower quartile, or private spending above the upper quartile, of the OECD members with a value (a fixed reference group, so the cut-offs do not move as countries are added): 30.76 doctors or 62.16 nurses and midwives per 10,000 (lower quartiles of the 38 and 38 OECD members with a value), and 28.66% of current health spending (upper quartile of 35). A wait flag is true when the longer of the hip and knee medians is over 90 days, the OECD's own three-month line. A record flag is true when the class is split. Unknown is never counted as false.

9.4 Coverage

Countries with a value, of 198: doctors 192, nurses and midwives 192, private insurance plus out-of-pocket spending 183, duplicate private insurance 19, median hip and knee waits 19. Flags: staffing 192 measured, 154 true; private spending 185 measured, 115 true; waits 19 measured, 14 true; record split 51 known, 5 true. Waits are reported for only 19 of 198 countries, mostly those that run waiting lists, and most of those exceed 90 days, so the wait flag separates little. Because the cut-offs are set by the OECD members, most countries outside the OECD carry the staffing flag, so it separates countries mainly within the OECD. Whether the record reaches private providers is known for 51 of 198. Of the known classes, 15 from our country files alone, 30 from the outside research alone and 6 from both, in agreement. Each class from the outside research rests on one quoted

sentence from a named source, mostly laws, ministries and system operators. Each quote was fetched again and checked against its page, except on two pages that block automated access.

9.5 What it shows

By record class: 10 connected, 36 partial, 5 split and 147 unknown. Split means private providers do not write to the record the public system uses. Partial means some do, or some services do: often the gap is a single kind of provider, such as private imaging in one province. Counting both, in 41 of the 51 countries we could check the public health record does not fully reach private care; most of those are partial, not split. Chile, Mexico and South Africa carry three or more of the four flags; waits are not reported for 2 of the 3.

Canada, a worked example. Canada has 28.54 doctors per 10,000 (WHO, 2024), 31 of 38 OECD members (1 = most), and 116.18 nurses and midwives (14 of 38). Its median waits from specialist assessment to treatment are 120 days for a hip and 146 for a knee (OECD, 2025), 9 of 18 and 12 of 18 reporting members (1 = longest). Voluntary insurance pays 12.66% of health spending (2023), 2 of 35 OECD members with a value, and 67% of people hold it (2025, provisional); OECD reports no figure for duplicate cover. The record-split class is partial: British Columbia Ministry of Health, Digital Health Initiative: Health Gateway ‘Diagnostic Imaging Reports’ frequently asked questions states “Diagnostic imaging reports from most private clinics will not be available in Health Gateway as they currently are not available to our provincial repository.” Canada carries 2 of 4 flags, and all four were measured. Canada carries 2 of the four flags: its doctor count (28.54 per 10,000) is below the OECD lower quartile (30.76) and its median hip and knee waits exceed 90 days. Its record reaches some private providers and not others, province by province and service by service. The data does not show waits driving people into a parallel private system for the same care: duplicate private insurance, the kind that buys a faster route to care the public plan already covers, has no OECD figure for Canada. The countries where OECD reports the most duplicate cover are Israel (87.6% of people; record class unknown), Ireland (46% of people; record class partial) and Australia (45.4% of people; record class partial).

9.6 Guards against reading it as a ranking

These are the layer’s design rules for the interactive index.

- No composite and no flag-count column. Countries are listed alphabetically, never by flags.
- No colour, and no mark on the globe, the map or the ranked table, so the layer cannot read as a second score.
- Unknown is printed as the word “unknown”, so missing data cannot pass for low strain.
- The quartiles across all countries mostly sort by national income. For OECD members we show the OECD rank beside each value.
- Voluntary insurance excludes compulsory private insurance, which is large in the United States, the Netherlands and Switzerland. It is shown separately.
- We do not correlate the record class with the journey or clinician scores. Where the class comes from our own country files, the two share a source and would agree by construction.

9.7 Status of the hypothesis

The hypothesis is not tested here. Public data can measure each link: staff, waits, private spending, and whether the record reaches private providers. It cannot test the causal step, that waits push people to private care and that this care then splits their record. That would need data on who goes private and why, and on what happens to their record when they do.

10. A method note: counting posts on X

We tried to count posts on X (formerly Twitter) about real problems with health records, as a second view of what people report. We used the official X API (full-archive counts and search) for posts from 2024-10-01 to 2026-09-30, with one query per country in its main languages. Raw counts are not a measure: most matching posts are policy talk, news about other countries, spam or jokes. So an agent read a random sample of matching posts for each country and classified each against a written definition. A country's figure would be shown only if at least 60% of at least 20 sampled posts were on topic. Two deliberately broad test queries failed the gate, which shows the gate can reject a broad query.

Only 7 of 43 countries passed: Argentina, Chile, Germany, Mexico, Netherlands, Poland and Spain. Most of what passed was breach news, recall was not measured, and the figures could not be compared across countries because X use and query breadth differ by country. The 155 countries added after the run started were not measured. We therefore do not show X counts in the index. For most countries, public posts on X cannot be turned into a usable count of record problems. No post text, handle or post identifier is kept in the repository.

11. Authors' position: the record should travel with the person

This section is the authors' position, not a finding. It aligns with what SuperTruth sells (see Conflict of Interest).

All 9 countries in the Strong band are Shared: they give the person a register of consent, a log of who looked, and a copy of their own record, inside infrastructure that the state or providers run. That is a real achievement, and most countries in this index fall short of it. It is also not the same as the person holding the record.

As clinical AI reads more records, the question of who holds them becomes a question of who can check them. Records contain errors that the people they describe can see. In a survey at three US health systems, 21.1% of 22,889 patients who read their visit notes reported a mistake they perceived, and 42.3% of those called it serious [23]. Those are errors as patients perceived them, not errors confirmed by a clinician. A record the person can see is a record the person can correct. A record whose every use is logged is a record whose use can be proven. We think the next step for every system in this index, the strong ones included, is to make the record verifiable by the person it describes.

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Conflict of Interest

The authors are officers of SuperTruth Inc., which sells health data verification products. SuperTruth funded this work and controlled its design, analysis, writing and the decision to publish. The evidence grade in Section 8 adapts SuperTruth's own Data Trust Index; its source [6] is the first author's own deposit and has not been peer reviewed. The position in Section 11 aligns with what SuperTruth sells. SuperTruth built this index and chose the accounts in Section 5 itself; no country, company or person paid to be included, excluded or scored. Readers should weigh this disclosure when evaluating the results.

Intended Use

This index is a research tool. It is not legal advice and does not assess the compliance of any organisation. The accounts in Section 5 are summaries of published sources and make no finding of our own about any person or organisation. The context layer in Section 9 is not a score and not a ranking.

Data and Code Availability

The public release is a clean export of the project, in a public repository linked from the Zenodo record. It holds the scores, category texts, sources, laws, journey maps and news items for every country; the rubric and its v1.1 anchors; the build script that computes every overall score; the audit and the record of score changes; the evidence grade; the strain and split layer; the external cross-check; the stability analysis and the blind re-scoring (plan, rater kit and ratings); and the script that fills every number in this paper. It does not include internal working files such as drafts, launch materials and internal review notes, and it does not include the individual accounts. For about an hour on 2 October 2026 the public copy also held the accounts and the internal review notes; they were removed and the repository history replaced, but copies made in that hour cannot be recalled. The paper and data are released under CC BY 4.0 and the scoring and analysis code under the MIT licence, copyright SuperTruth Inc. The dataset DOI is assigned by Zenodo on deposit.

The interactive index is at <https://healthrecordrights.com>. Each of the 198 countries also has a printable one-page brief at <https://healthrecordrights.com/brief/ISO3/> (for example /brief/FIN/ for Finland). "Ask the index" is an agent on the same page that answers questions only from the index's own data and says so when the index does not hold an answer.

The accounts in Section 5 are linked from the interactive index and are not deposited, so that a removal request can be honoured; aggregate counts are in Tables 4 to 6. Removal and correction requests: see the interactive index.

Author Contributions

All three authors conceived the index together, directed the research, reviewed the results and approved the final text, and share equal credit.

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